



# FORMAL RECORD OF THE DENIAL OF ACCESS TO JUSTICE AND ADMINISTRATIVE MALPRACTICE

4 messages

**Wilbur William Matthee** <info@ethichawks.co.za>  
To: Farzaana Ismail <FIsmail@judiciary.org.za>  
Cc: RDavid@judiciary.org.za, ZMnye@judiciary.org.za, ssalie@sahrc.org.za, info@sahrc.org.za, vramaano@parliament.gov.za, smthonjeni@parliament.gov.za, enquiries@judiciary.org.za, Tsakani Soundy <TSoundy@judiciary.org.za>, " <NHanekom@judiciary.org.za>  
Bcc: wilburmat@gmail.com <wilburmat@gmail.com>

Thu, 09 Apr 2026 at 17:00

Ms. Tsakani Soundy (Judiciary); Attention: The Office of the Chief Justice.

Madam,

I am writing this under conditions of extreme duress, homelessness, and financial destitution caused directly by my actions as a whistleblower in the public interest. This is no longer a request for assistance; it is a formal indictment of a miscarriage of justice occurring under your watch.

1. The Fact of the Obstruction

At 09:54 AM today, you confirmed in writing: "I have been informed that your matter was approved and a case number was issued". Despite this confirmation, and knowing my statutory 90-day deadline expires today, 9 April 2026, your office has withheld that case number. This silence is a functional denial of my Section 34 Constitutional Right to Access to Justice.

2. The Inhumanity of the "Gatekeeper"

I have spent my career as a Specialist Nurse, the very person society relies on in its darkest hours. I was a shift leader in the Resus and Trauma units at Mitchells Plain during the COVID-19 pandemic—showing up every day to protect the vulnerable until the virus claimed me too at the end. My profession dictates that even a rapist is treated with the same dignity and care as any other patient. I have never allowed bias or judgment to overwhelm my duty to provide individual care.

Yet, as I stand at the "doors of justice," I am met with a cold, administrative refusal to provide a helping hand. I am a carer turned patient, and the system is effectively "throwing me to the dogs".

3. Systemic Failure and Accountability

Since 5 March 2026, I have faced technical rejections and portal failures that are no fault of my own. I was forced to the High Court in a desperate attempt to be heard, only to have a whistleblower's case struck with punitive Scale C costs—furthering my destitution. My request for the audio for a urgent 42 rescission application also ignored by the Acting Chief Registrar of the High Court Ms Nicola Hanekom in Ms David inbox the silence continues.

Minister Mmamoloko Kubayi warned on 8 April 2026 that whistleblowers face "weak protections". Your office is currently proving her right. You are reducing a human life, and the safety of 1.9 million GEMS members I sought to protect, to a technicality.

4. Formal Notice of Liability

I place it on the record for the Chief Justice and the SAHRC: Should my mental health or physical safety decline further as a result of this orchestrated exclusion, the responsibility lies with the Registrar of the Labour Court as the High Court. I have acted with courage to remain alive and fight for myself when no one else would.

I demand the immediate release of the case number that you have already confirmed exists. The time for "rules" to supersede "humanity" has ended. Justice delayed is justice denied.



**SOC\_Final\_9Apr2026-2.pdf**  
365 KB

---

**Ruanne David** <[RDavid@judiciary.org.za](mailto:RDavid@judiciary.org.za)> Thu, 09 Apr 2026 at 22:00  
To: Farzaana Ismail <[FIsmail@judiciary.org.za](mailto:FIsmail@judiciary.org.za)>, Nicola Hanekom <[NHanekom@judiciary.org.za](mailto:NHanekom@judiciary.org.za)>  
Cc: [info@ethichawks.co.za](mailto:info@ethichawks.co.za) <[info@ethichawks.co.za](mailto:info@ethichawks.co.za)>

Good day Ladies

Please provide feedback on the complaints below.

1. Why has a case number not been issued yet by the Labour Court?
2. Why is the audio not available for the complainant from the High court?

Kind regards,

[Quoted text hidden]

**Disclaimer:**

The information contained in this communication from [rdavid@judiciary.org.za](mailto:rdavid@judiciary.org.za) sent at 2026-04-09 22:00:01 is confidential and may be legally privileged. It is intended solely for use by [info@ethichawks.co.za](mailto:info@ethichawks.co.za) and others authorized to receive it. If you are not [info@ethichawks.co.za](mailto:info@ethichawks.co.za) you are hereby notified that any disclosure, copying, distribution or taking action in reliance of the contents. **Powered by Office Of The Chief Justice**



**SOC\_Final\_9Apr2026-2.pdf**  
365 KB

---

**Farzaana Ismail** <[FIsmail@judiciary.org.za](mailto:FIsmail@judiciary.org.za)> Fri, 10 Apr 2026 at 08:26  
To: Ruanne David <[RDavid@judiciary.org.za](mailto:RDavid@judiciary.org.za)>, Nicola Hanekom <[NHanekom@judiciary.org.za](mailto:NHanekom@judiciary.org.za)>  
Cc: [info@ethichawks.co.za](mailto:info@ethichawks.co.za) <[info@ethichawks.co.za](mailto:info@ethichawks.co.za)>, Tsakani Soundy <[TSoundy@judiciary.org.za](mailto:TSoundy@judiciary.org.za)>

Good morning Ms David

A case number was issued for this matter, I have attached the screenshot.

Regards

[Quoted text hidden]

**Disclaimer:**

The information contained in this communication from [fismail@judiciary.org.za](mailto:fismail@judiciary.org.za) sent at 2026-04-10 08:25:58 is confidential and may be legally privileged. It is intended solely for use by [info@ethichawks.co.za](mailto:info@ethichawks.co.za) and others authorized to receive it. If you are not [info@ethichawks.co.za](mailto:info@ethichawks.co.za) you are hereby notified that any disclosure, copying, distribution or taking action in reliance of the contents. **Powered by Office Of The Chief Justice**



**WILBUR WILLIAM MATHEE.png**  
125 KB

**Ruanne David** <[RDavid@judiciary.org.za](mailto:RDavid@judiciary.org.za)> Fri, 10 Apr 2026 at 08:29  
To: [info@ethichawks.co.za](mailto:info@ethichawks.co.za) <[info@ethichawks.co.za](mailto:info@ethichawks.co.za)>  
Cc: Tsakani Soundy <[TSoundy@judiciary.org.za](mailto:TSoundy@judiciary.org.za)>, Farzaana Ismail <[FIsmail@judiciary.org.za](mailto:FIsmail@judiciary.org.za)>, Nicola Hanekom <[NHanekom@judiciary.org.za](mailto:NHanekom@judiciary.org.za)>

Good day Mr Matthee

It seems from the attached screenshot that a case number was issued at the Labour Court: 2026- 077546.

It was issued on the 02 April 2026 at 8h36am.

You should have received an e-mail confirmation on your side.

Thanking you.



**Mrs Ruanne David**  
WC: Director Court Operations  
Office of the Chief Justice

**Office:** +27 21 469 4003/48  
**Email:** [RDavid@judiciary.org.za](mailto:RDavid@judiciary.org.za)

Western Cape Provincial Service Centre  
30 Queen Victoria Street, 5<sup>th</sup> Floor, AA Building  
Cape Town, 8000  
Private Bag X14, Vlaeberg, 8001

**Tel:** +27 21 469 4000 (Switchboard)  
[www.judiciary.org.za](http://www.judiciary.org.za)



[Quoted text hidden]

**Disclaimer:**

The information contained in this communication from [rdavid@judiciary.org.za](mailto:rdavid@judiciary.org.za) sent at 2026-04-10 08:29:36 is confidential and may be legally privileged. It is intended solely for use by [info@ethichawks.co.za](mailto:info@ethichawks.co.za) and others authorized to receive it. If you are not [info@ethichawks.co.za](mailto:info@ethichawks.co.za) you are hereby notified that any disclosure, copying, distribution or taking action in reliance of the contents. **Powered by Office Of The Chief Justice**



WILBUR WILLIAM MATHEE.png

125 KB